



Mathew Tyler

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Plaintiff, *Pro per pro se*

Dated: June 4, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

_____/

***Case No.* 2:2025CV00404**

**PLAINTIFF'S RESPONSE BRIEF TO CALIFORNIA DEFENDANTS' MOTION
TO DISMISS; ECF No. 19**

1 **MEMORANDUM OF POINTS AND AUTHORITIES**

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3 **TABLE OF CONTENTS**

4 **Page**

5 I. INTRODUCTION 1

6 II. LEGAL STANDARD 2

7 III. FACTUAL BACKGROUND 3

8 IV. ARGUMENT 4

9 A. The Complaint Meets All Pleading Requirements Under Rule 8(a)(2) 4

10

11 B. Plaintiff Has Standing and States Valid Claims Against California Defendants 6

12

13 C. Constitutional Preemption Bars Defendants' Discriminatory Conduct 8

14

15 D. Plaintiff's ADA and Section 504 Claims Are Properly Pleaded 10

16 V. CONCLUSION 12

1 **I. INTRODUCTION**

2 Plaintiff Mathew Tyler ("Plaintiff"), an indigent layperson appearing pro per pro se,
3 proceeding in forma pauperis, and a qualified individual with a disability as codified by
4 42 U.S.C. § 12131(2), respectfully submits this Response Brief to California Defendants'
5 Motion to Dismiss (ECF No. 19). Plaintiff is a crime victim as defined by 18 U.S.C. §
6 3771, California Constitution Article 1 § 28(e), and codified by 34 U.S.C. § 20141(e)(2).

7 As established in *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29,
8 2025), "The Court must also construe the alleged facts in the light most favorable to the
9 plaintiff. See *Scheuer v. Rhodes*, 416 U.S. 232, 236 (1974); see also *Hosp. Bldg. Co. v.*
10 *Rex Hosp. Trustees*, 425 U.S. 738, 740 (1976); *Barnett v. Centoni*, 31 F.3d 813, 816 (9th
11 Cir. 1994) (per curiam). All ambiguities or doubts must also be resolved in the plaintiff's
12 favor. See *Jenkins v. McKeithen*, 395 U.S. 411, 421 (1969)."

13 The California Defendants' motion fundamentally mischaracterizes both the law and
14 Plaintiff's well-pleaded allegations. This case presents clear violations of federal
15 constitutional and statutory rights that cannot be dismissed at the pleading stage.

16 **II. LEGAL STANDARD**

17 **A. Rule 12(b)(6) Standard**

18 Federal Rule of Civil Procedure 12(b)(6) authorizes dismissal only for "failure to state a
19 claim upon which relief can be granted." A complaint satisfies this standard when it

1 contains "enough facts to state a claim to relief that is plausible on its face." *Bell Atl.*
2 *Corp. v. Twombly*, 550 U.S. 544, 570 (2007).
3 "A claim has facial plausibility when the plaintiff pleads factual content that allows the
4 court to draw the reasonable inference that the defendant is liable for the misconduct
5 alleged." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009).

6 **B. Liberal Construction for Pro Se Litigants**

7 The courts have a heightened duty to construe pleadings liberally and to afford greater
8 latitude when evaluating the filings of in forma pauperis and pro se litigants. See *Haines*
9 *v. Kerner*, 404 U.S. 519, 520-21 (1972) (pro se complaints are held "to less stringent
10 standards than formal pleadings drafted by lawyers"); *Erickson v. Pardus*, 551 U.S. 89,
11 94 (2007) (pro se pleadings must be liberally construed); *McElyea v. Babbitt*, 833 F.2d
12 196, 197 (9th Cir. 1987) ("The court has a duty to ensure that pro se litigants do not lose
13 their right to a hearing on the merits of their claim due to ignorance of technical
14 procedural requirements."); *Johnson v. Reagan*, 524 F.2d 1123, 1124 (9th Cir. 1975)
15 (motions of self-represented, in forma pauperis plaintiffs "should be viewed with special
16 solicitude").

C. Supremacy Clause Framework

In accordance with Article VI, Clause 2 (the "Supremacy Clause") of the U.S. Constitution, the U.S. Constitution is the supreme law of the land; then federal law; then state law. *Crosby v. National Foreign Trade Council*, 530 U.S. 363 (2000); *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316 (1819); *Arizona v. United States*, 567 U.S. 387 (2012).

III. FACTUAL BACKGROUND

Plaintiff is a constitutionally qualified candidate for President of the United States, meeting all requirements under Article II, Section 1, Clause 5: (1) Natural born citizen, (2) 35 years of age or older, and (3) fourteen year residency within the United States.

In 2024, Plaintiff made Section 504/ADA requests for reasonable accommodations to the Secretary of State for all 50 states. Specifically, Plaintiff requested a medical exception to the collection of hundreds of thousands of signatures from each state required for unaffiliated ballot access, as Plaintiff is physically unable to accomplish such collection due to documented disabilities including central core disease and ADHD.

Despite citing superseding federal laws, the U.S. Constitution, federal law, case law, and California state law, not one state honored Plaintiff's request or sought to include Plaintiff on the ballot. All 50 states sought to and succeeded in interfering in the 2024 general election by excluding Plaintiff from participating solely for having a disability and needing medical accommodation.

Regarding California specifically:

- 1 • In February 2024, Plaintiff sent a Section 504/ADA request via USPS to
- 2 California Secretary of State
- 3 • July 10, 2024: Plaintiff emailed a revised request to sos.hr@sos.ca.gov and
- 4 healthandsafety@sos.ca.gov
- 5 • July 26, 2024: Legal Affairs Office confirmed receipt but provided no
- 6 accommodation
- 7 • July 23, 2024: Plaintiff reported violations to California State Treasurer
- 8 • July 25, 2024: State Treasurer's Office refused to investigate Secretary of State
- 9 • Despite multiple attempts by Plaintiff, California Attorney General has refused to
- 10 prosecute any of these acts, enforce the law, or uphold the Constitution.
- 11 Constituting obstruction of justice and acting as a co-conspirator to the criminal
- 12 enterprise.

13 **IV. ARGUMENT**

14 **A. The Complaint Meets All Pleading Requirements Under Rule 8(a)(2)**

15 Contrary to Defendants' assertions, Plaintiff's Complaint clearly sets forth "a short and
16 plain statement of the claim showing that the pleader is entitled to relief" as required by
17 Federal Rule of Civil Procedure 8(a)(2).

18 **1. Sufficient Factual Allegations**

19 Plaintiff's Complaint details:

- 1 • Specific requests for reasonable accommodations made to California officials
- 2 • Particular dates and methods of communication
- 3 • Documented disabilities requiring accommodation
- 4 • Constitutional qualifications for presidential candidacy
- 5 • Systematic denial of legally required accommodations
- 6 • Specific federal and state laws violated

7 This exceeds the notice pleading standard. See *Conley v. Gibson*, 355 U.S. 41, 47 (1957)
8 (complaint should not be dismissed "unless it appears beyond doubt that the plaintiff can
9 prove no set of facts in support of his claim which would entitle him to relief").

10 **2. Clear Causal Connection**

11 The Complaint establishes clear causal connections between:

- 12 • Defendants' refusal to provide accommodations
- 13 • Plaintiff's exclusion from the ballot
- 14 • Violations of constitutional and statutory rights
- 15 • Systematic discrimination based on disability

16 **3. Distinguished from Cases Cited by Defendants**

17 The Ninth Circuit cases cited by Defendants involved complaints that were "prolix,
18 confusing," "argumentative," or "conclusional and unsupported by any facts." Here,
19 Plaintiff provides specific factual allegations tied to particular legal violations with clear
20 causal connections.

B. Plaintiff Has Standing and States Valid Claims Against California Defendants

1. Secretary of State

Contrary to Defendants' assertion that "the State Treasurer and Attorney General play no part in that process," California Government Code § 12172.5 makes the Secretary of State "the chief elections officer of the state" responsible for ensuring compliance with election laws, including federal anti-discrimination requirements.

California Elections Code § 8400 requires the Secretary of State to process nomination papers and determine ballot placement. The Secretary's denial of Plaintiff's accommodation request directly caused his exclusion from the ballot, establishing clear Article III standing.

2. State Treasurer

California Government Code § 11136 specifically authorizes and requires the State Treasurer to investigate violations of Cal. Gov't Code §§ 11135-11139 (anti-discrimination provisions) and "cause to be instituted a hearing" when violations are found. The Treasurer's refusal to investigate documented discrimination by the Secretary of State violates this mandatory duty.

3. Attorney General

The California Attorney General has specific enforcement authority under California's Unruh Civil Rights Act and other anti-discrimination statutes. The AG's failure to enforce

1 these laws against the Secretary of State's documented discrimination establishes a valid
2 claim.

3 **C. Constitutional Preemption Bars Defendants' Discriminatory Conduct**

4 **1. Article II Constitutional Requirements**

5 The criteria for U.S. President are explicitly established in Article II, Section 1, Clause 5
6 of the U.S. Constitution. In accordance with the Supremacy Clause, state laws imposing
7 additional eligibility criteria that conflict with constitutional requirements are superseded
8 and preempted.

9 *Trump v. Anderson*, No. 23-719, 601 U.S. (2024) definitively established that "It would
10 be incongruous to read this particular Amendment as granting the States the power —
11 silently no less — to disqualify a candidate for federal office." This establishes: (1) States
12 lack the power to disqualify candidates for federal office, and (2) not including a
13 candidate on the ballot constitutes disqualification.

14 **2. Historical Foundation**

15 The Founding tradition supports broad ballot access. *Burdick v. Takushi*, 504 U.S. 428,
16 446 (1992) ("...until the late 1800's, all ballots cast in this country were write-in ballots...
17 Since there were no state-imposed restrictions on whose name could appear on a ballot,
18 individuals could always vote for the candidates of their choice.").

1 **3. Due Process Violations**

2 The government cannot deny benefits without first affording due process. *Goldberg v.*
3 *Kelly*, 397 U.S. 254, 267 (1970); *Goss v. Lopez*, 419 U.S. 565, 572-73 (1975). Defendants
4 denied Plaintiff ballot access without meaningful process to consider accommodation
5 requests.

6 **D. Plaintiff's ADA and Section 504 Claims Are Properly Pleaded**

7 **1. Defendants Mischaracterize the Legal Standard**

8 Contrary to Defendants' assertion, Plaintiff need not establish that signature gathering is
9 impossible due to his disability. The ADA requires "reasonable modifications in policies,
10 practices, or procedures" unless they would "fundamentally alter the nature" of the
11 program. 42 U.S.C. § 12182(b)(2)(A)(ii).

12 **2. Well-Pleaded Accommodation Request**

13 Plaintiff's accommodation request was reasonable and legally required:

- 14 • Medical exception to signature collection due to documented physical limitations
- 15 • Alternative means of demonstrating ballot qualification
- 16 • Consistent with ADA's integration mandate requiring services in "most integrated
- 17 setting" for the individual

1 **3. Failure to Engage in Interactive Process**

2 Defendants failed to engage in the required interactive process to determine appropriate
3 accommodations. See *A.G. v. Paradise Valley Unified Sch. Dist. No. 69*, 815 F.3d 1195,
4 1206 (9th Cir. 2016).

5 **4. Distinguished from *De La Fuente***

6 *De La Fuente v. Padilla*, 930 F.3d 1101 (9th Cir. 2019), is distinguishable because:

- 7 • Plaintiff here specifically requested medical accommodation for documented
8 disability
- 9 • California law provides mechanism for exemptions that was denied
- 10 • Defendants failed to demonstrate fundamental alteration
- 11 • Unlike *De La Fuente*, Plaintiff seeks reasonable modification, not elimination of
12 requirements

13 **5. Pattern of Violations**

14 The systematic denial across all 50 states demonstrates coordinated discrimination rather
15 than legitimate regulatory interests, distinguishing this from typical ballot access cases.

16 **V. CONCLUSION**

17 For the foregoing reasons, California Defendants' Motion to Dismiss should be DENIED
18 in its entirety. Plaintiff has stated valid claims for relief under the U.S. Constitution,
19 ADA, Section 504, and related federal statutes. The motion to dismiss fails to address the

1 systematic constitutional violations and represents a continuation of the discriminatory
2 conduct alleged in the Complaint.

3 As established in *In re Murchison*, 349 U.S. 133, 136 (1955), "justice must satisfy the
4 appearance of justice." Allowing systematic discrimination against qualified candidates
5 with disabilities would undermine the fundamental integrity of democratic processes.

6
7 Dated: June 04, 2025

8
9 Respectfully submitted,



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17 **Plaintiff, *Pro per pro se***

1 VERIFICATION

2
3 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
4 that the foregoing is true and correct to the best of my knowledge and belief.

5
6 Executed on June 04, 2025, at Butte County, California.



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